REPORTABLE (30)

ISAAC JAMU
v
THE STATE

SUPREME COURT OF ZIMBABWE
GUVAVA JA, MATHONSI JA & MWAYERA JA
HARARE: 27 FEBRUARY 2026

The appellant in person

C. Muchemwa, for the respondent

MWAYERA JA:

1. This is an appeal against the judgment of the High Court (the court *a quo*) which dismissed an appeal by the appellant against the decision of the Magistrates Court sitting at Harare, in which the appellant was convicted of the crime of rape as defined in s 65 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] (the "Criminal Law Code"). On 27 February 2026, after hearing submissions from counsel, this Court dismissed the appeal indicating that reasons would follow. These are they.

BACKGROUND FACTS

2. The appellant, Isaac Jamu, together with two others, Honest Mufutumari and Nomore Muchazivepi, appeared in the Magistrates Court facing one count of robbery as defined in s 126 of the Criminal Law Code, one count of rape as defined in s 65 of the Code and one count of aggravated indecent assault as defined by s 66 of the Code.

3. The allegations were that on the night in question, the appellant and his accomplices, while armed with machetes, iron bars, knives, and hammers, broke into the residence where the complainants were asleep. They force-marched a juvenile complainant in the rape count and another juvenile girl, the complainant in the aggravated indecent assault count together

with Admire Choga into the lounge and ordered them to lie facing downwards. The assailants also confronted Yvonne Diana Musemwa and her husband Robert Mabvurudza in their bedroom, threatening to kill them and demanding cash and valuables.

4. It was further alleged that during the robbery, one of the assailants took the complainant in the rape count to the bathroom where he placed her against a washing machine and then in a bath tub filled with water. He then raped her without protection, while placing an iron bar on her chest throughout the ordeal. Two other assailants took the other juvenile girl to a storeroom where one of them inserted his fingers into her private parts while the other ordered her to suck his male organ. The assailants proceeded to ransack the house, stealing various cell phones, cash amounting to US$4 110.00 and 600 bond notes, two monarch bags containing baby clothes, two laptops (Sansui and HP), an Africom WiFi modem, Converse sneakers, a 42-inch Samsung television set, two Ecco DVDs, an Ecco subwoofer, an Explora DSTV decoder, and a Mercedes Benz C200 motor vehicle. Before leaving, one of the assailants defecated in a bucket full of mealie-meal. The stolen motor vehicle was later recovered abandoned at Machipisa Shopping Centre.

5. The appellant pleaded not guilty to all charges. In his defence outline, he denied any involvement, stating that he was asleep at his home on the night in question. He claimed that his arrest resulted from his failure to disclose the whereabouts of one Abel Marufu, whom the police were seeking. He alleged that the police assaulted him and forced him to make indications. He further disputed that a black leather jacket allegedly recovered from him belonged to him or linked him to the offences. The second accused person (Nomore Muchazivepi) claimed that he was implicated by Hardmore Masocha due to a personal dispute involving an alleged relationship with Masocha's wife. The third accused person (Honest Mufutumari) similarly denied involvement and alleged police coercion.

6. The State led evidence from ten witnesses, including the complainants, the investigating officer, and individuals who had purchased stolen property from the accused persons. The complainant in the rape count, gave a detailed account of the rape, breaking down during her testimony. The complainant in the aggravated indecent assault count, described how fingers were inserted into her vagina and she was ordered to commit *fellatio*. The evidence established that shortly after the robbery, the appellant and his co-accused were seen selling stolen property, including a laptop and DSTV decoder, to Hardmore Masocha and Antony Chimbakura. Various stolen items, including phones, laptops, a decoder, and the black leather jacket, were recovered and positively identified by the complainants.

7. Following a full trial, the Regional Magistrate convicted all three accused persons on all three counts. The trial court found that although none of the complainants could identify the assailants by face due to face masks they were putting on, the circumstantial evidence, particularly the recovery of the stolen property and the black leather jacket described by multiple witnesses, linked the appellant to the offences. The trial court applied the doctrine of common purpose, holding that even though only one person physically committed the rape and two committed the indecent assault, all accused persons were liable as co-perpetrators who actively associated themselves with the unlawful enterprise. The trial court found that the complainants' reports were made promptly and their demeanour during testimony corroborated their credibility. The indications evidence was rejected due to procedural irregularities, but this did not taint the totality of the evidence placed before the trial court. It relied on the overwhelming circumstantial evidence.

8. On sentence, the appellant received 12 years imprisonment for robbery, 15 years for rape, and 10 years for aggravated indecent assault. From the total of 25 years for counts two and

three, five years were suspended on condition of future good behaviour, resulting in an effective sentence of 32 years imprisonment.

PROCEEDINGS IN THE COURT *A QUO*

9. Aggrieved by the rape conviction and sentence, the appellant noted an appeal to the court *a quo*. On 31 March 2025, the court *a quo* dismissed the appeal in its entirety. It found that the appellant did not cross-examine the rape complainant at trial and did not dispute that the rape occurred. The court *a quo* noted that the appellant's convictions for robbery and aggravated indecent assault (which were not appealed) remained intact, demonstrating his participation in the overall criminal enterprise. It also found that since the rape was committed in the course of the same robbery by the same group acting in common purpose, the appellant could not successfully appeal the rape conviction while the related convictions stood. The court *a quo* further held that the sentence of 15 years for rape, with five years suspended from the aggregate, was not excessive given the serious and violent circumstances of the offence. The appeal was dismissed as devoid of merit.

10. The present appeal to this Court, just like in the court *a quo* was only confined to the rape conviction and sentence.

GROUNDS OF APPEAL

Ad Conviction

1. The bench *a quo* erred in confirmation of the conviction in finding that it was proper, in circumstances that the evidence led by the complainant was contrary to the Medical evidence.
2. The bench *a quo* misdirected itself in failing to note the real argument factor of the matter, which was to the effect that; did the charge of rape exist at all especially going by the Medical findings on the Medical report.

3. The Bench *a quo* erred by confirmation of the conviction in circumstances that the language on the medical report was inclusive and required that; the expert be summoned in terms of s 232 of the CPE Act; as the need was also taken note of by the trial court in cross examination and the State itself, the record is clear on that aspect.
4. The bench *a quo* fundamentally erred and failed justice when it confirmed the conviction on the basis that the appellant did not challenge and or cross-examine the complainant as regards to the charge; at the juncture giving a blind eye that the appellant was a self-actor, who ought to have been assisted by the court in cross-examination so to fully elicited the lines of defence.
5. The bench *a quo* erred by the confirmation of the conviction, in circumstances that the Medical expert's findings were contrary to the testimony of the complainant; that she was raped within the range of 0-24 Hours.
6. The bench *a quo* erred by drawing the only inference that; due to the fact that appellant was appealing in respect of count 2; thus; such made him the culprit of the night in question; at that juncture failing to be alive to the fact that, the court only granted the relief in respect of count 2 only; whereas he only granted the relief in respect of count 2 only; whereas he intended to appeal against the count of Robbery separately.

Ad Sentence

7. The bench *a quo* erred in confirmation of the sentence in circumstances that it ought to have put into consideration that it was dealing with a continuous transaction which emanated from a single intent so to order some of the offences to run concurrently with the sentence of count 2.
8. The bench *a quo* erred in the confirmation of the sentence in circumstances where it failed to comply with s 279A of the Code to either order the sentences to run

concurrently or the sentences to amount to a sentence that would have been arrived at had the sentences been ordered to run concurrently.

SUBMISSIONS BEFORE THIS COURT

11. At the hearing, the appellant contended that this appeal had merit and narrated how the matter stemmed from an initial conviction by the magistrate on three counts, of robbery, rape and aggravated indecent assault. After having applied for leave to appeal, he was only granted leave to appeal against the count of rape, which, upon appeal to the court *a quo,* was dismissed.

12. The appellant stated that the medical report contradicted the evidence which was given by the complainant and which was also questioned by the magistrate. He contended that the complainant stated that she was a virgin, however, her medical examination per the medical report, showed she had healed hymenal tears even though the examination was conducted on the same day. He argued that the complainant gave evidence that after she was raped, she was left bleeding, however, the medical report did not indicate the same. He submitted that a period of 14 hours elapsed between the act of rape and the examination. He contended that the nurse who compiled the report was supposed to be called to explain the findings in her report in light of the contradictions with evidence.

13. The Court engaged the appellant on whether the report should be looked at in isolation, given that there was other evidence besides the medical report, which the appellant had not challenged. In particular, that there were witnesses present who heard her scream, and she was left unable to walk after the rape. Further to that, the Court queried why the appellant had not questioned the complainant on the issue. The appellant responded that the possibility of fabrication cannot be discounted, even where witnesses are present, as human recollection is fallible and narratives can be influenced.

14. Regarding the sentence, the appellant prayed that his sentence runs concurrently on all counts. The Court indicated that such was not available as it was only the charge and sentence of rape that were presently before it. In any event, the robbery charge could not in the circumstances be ordered to run concurrently with the charge of rape as they are different offences with different essential elements. He stated that he was arrested in 2019 and only convicted in 2021, and this period ought to be taken into account. He stated that his sentence was extremely harsh and sought a sentence that is rehabilitative and gives him a chance to be released so that he could go and support his family.

15. In opposition, Mr *Muchemwa*, counsel for the respondent, argued that the appeal had no merit. He submitted that the court *a quo* found that the Magistrates Court had properly convicted the appellant after having looked at the report and concluded that the issue of virginity was not material to prove rape. He submitted further that during the trial, the appellant did not challenge the medical report when it was presented but only sought to dispute it in the defence case, which was improper. He argued that the sentence imposed on the appellant was rather lenient as rape attracts life imprisonment; however, the appellant had been sentenced to15 years imprisonment, a point which the court *a quo* also took note of. Counsel contended that it would not be proper to order sentences of offences with different essential element to run concurrently.

16. In reply, the appellant argued that a concurrent sentence was available for the asking, as the offences were committed at the same place and time.

ISSUES FOR DETERMINATION

17. The following two issues arise for determination in this case**:**

    (i) Whether the court *a quo* erred in confirming the conviction of the appellant in spite of the findings of healed hymenal tears in the medical report.

(ii) Whether the court *a quo* erred in confirming the sentence imposed by the Magistrate's Court.

APPLICATION OF THE LAW TO THE FACTS

Whether the court *a quo* erred in confirming the conviction of the appellant in spite of the findings of healed hymenal tears in the medical report.

18. The appellant's principal contention was that the medical report contradicted the complainant's testimony and that the court *a quo* erred in confirming the conviction in light of those alleged inconsistencies. This argument could not be sustained when the applicable legal principles governing the proof of rape were properly considered together with the evidential record.

19. Section 65 of the Code states:

> "**65 Rape**
>
> (1) If a male person knowingly has sexual intercourse or anal sexual intercourse with a female person and, at the time of the intercourse—
>
> (a) the female person has not consented to it; and
>
> (b) he knows that she has not consented to it or realises that there is a real risk or possibility that she may not have consented to it; he shall be guilty of rape and liable—
>
> (i) if the crime was committed in aggravating circumstances as described in subsection (2) (that is to say if there is a finding adverse to the accused on any one or more of those factors), to life imprisonment or any definite period of imprisonment of not less than fifteen years; or
>
> (ii) if there are no aggravating circumstances, to a period of not less than five (5) years and not more than fifteen (15) years.
>
> (2) For the purpose of determining the sentence to be imposed upon a person convicted of rape, a court shall have regard to the following factors, in addition to any other relevant factors and circumstances—
>
> (a) the age of the person raped;
> (b) the degree of force or violence used in the rape;
> (b) the extent of physical and psychological injury inflicted upon the person raped;

(c) the number of persons who took part in the rape;
(d) the age of the person who committed the rape;
(d) whether or not any weapon was used in the commission of the rape;
(e) whether the person committing the rape was related to the person raped in any of the degrees mentioned in subsection (2) of section seventy-five;
(f) whether the person committing the rape was the parent or guardian of, or in a position of authority over, the person raped;
(g) whether the person committing the rape was infected with a sexually transmitted disease at the time of the rape."

20. The starting point for any analysis of the first issue must be the legal definition of rape under Zimbabwean law. Section 65 defines rape as sexual intercourse with a female person without her consent. Section 61 of the same Code defines "sexual intercourse" as "vaginal sexual intercourse between a male person and a female person involving the total penetration or penetration to the slightest degree of the vagina by the penis." This statutory definition codifies the common law position that has long been accepted in our jurisprudence.

21. In *Smith & Hogan Criminal Law* 5 ed p 407 the learned authors say:

> "The slightest penetration will suffice and it is not necessary to prove that the hymen was ruptured."

22. In *S* v *Gezani* HH-381-18 MUSAKWA J (as he then was) stated as follows regarding rape:

> "Rape requires proof of penetration. In this respect see s 61 of the Code which defines sexual intercourse as-
>
> > 'Sexual intercourse" means vaginal sexual intercourse between a male person and a female person involving the total penetration or penetration to the slightest degree of the vagina by the penis.'"

23. As correctly stated in *Smith & Hogan Criminal Law* and reaffirmed in *S* v *Gezani* (*supra*), the crime of rape requires proof of penetration. In terms of s 61 of the Code, sexual intercourse includes penetration "to the slightest degree." The rupture of the

hymen or the presence of physical injuries is not an essential element of the offence. It follows that the absence of visible trauma, bleeding, or fresh hymenal tears on a medical report does not negate the occurrence of rape. Medical evidence may corroborate a complainant's testimony, but it is not indispensable to proof of penetration.

24. In the present matter, the complainant gave a clear and detailed account of the rape. Her evidence was that she was forcefully taken to the bathroom during the robbery and raped while an iron bar was placed on her chest. Her testimony was given in court and subjected to the scrutiny of trial proceedings. Significantly, the appellant did not meaningfully challenge this evidence during cross-examination. The failure to contest material aspects of a witness's evidence ordinarily permits the court to accept that evidence as uncontroverted. The court *a quo* correctly observed that the complainant's testimony regarding the rape itself was not placed in dispute by the appellant during the trial.

25. The appellant sought to rely on the medical report to create doubt regarding the complainant's account. However, the alleged inconsistencies identified by the appellant did not undermine the essential elements of the offence. The reference in the report to healed hymenal tears did not negate the possibility of rape occurring during the incident in question. As the authorities make clear, rape does not require the rupture of the hymen. Similarly, the absence of recorded bleeding in the medical examination conducted approximately 14 hours after the incident, did not exclude the possibility that bleeding may have occurred earlier or that it had ceased by the time the examination was conducted. Medical findings must therefore be considered within the broader evidential context rather than treated as determinative in isolation.

26. The argument that the medical practitioner ought to have been called to testify in terms of s 232 of the Criminal Procedure and Evidence Act [*Chapter 9:07*] also lacks merit in

the circumstances of this case. The medical report was produced during the trial and formed part of the evidentiary record. If the appellant wished to challenge the contents of that report or seek clarification from the medical practitioner, the proper course would have been to raise that issue during the State case or request the attendance of the author of the report for cross-examination. The appellant instead consented to the production of the report and only sought to rely on alleged contradictions at the defence stage. That approach could not retrospectively render the report unreliable or invalidate the trial court's reliance on the complainant's evidence. Furthermore, the medical report was not the sole evidence supporting the conviction. The record reflected that other witnesses who were present in the house during the robbery testified that they heard the complainant screaming during the incident. Evidence was also led that the complainant was left distressed and unable to walk properly after the ordeal and had to be assisted by other witnesses to move back to the lounge. This surrounding evidence was consistent with the complainant's account and lends further support to the trial court's acceptance of her testimony. The court *a quo* correctly recognised that the medical report constituted only one component of a broader evidential matrix.

27. When the evidence is considered holistically, the conclusion reached by the trial court and affirmed by the court *a quo* cannot be faulted. The complainant's testimony established penetration, which is the central element of the offence of rape. The medical report did not contradict that evidence as it confirmed penetration was definite. The absence of findings of fresh hymenal tears on the medical report does not negate the occurrence of forced sexual intercourse as defined by the statute. The court *a quo* therefore did not err in concluding that the medical evidence did not undermine the conviction.

28. Accordingly, we found that the appellant failed to demonstrate that the court *a quo* misdirected itself in its treatment of the medical report or in its confirmation of the conviction for rape.

Whether the court *a quo* erred in confirming the sentence imposed by the magistrate's court.

29. This issue addresses the seventh and eighth grounds of appeal. The appellant contended that the court *a quo* erred in failing to take into account that the offences for which he was convicted arose from a single act and that the sentences ought therefore to have run concurrently in terms of s 279A of the Code.

30. At the outset, it was noted that leave to appeal to the court *a quo* had been granted solely in respect of the conviction and sentence for rape, which formed the basis of the appeal *a quo*. The seventh and eighth grounds of appeal, however, purported to challenge the convictions for robbery, aggravated indecent assault and rape. In the circumstances, it was not competent for the appellant to challenge sentences imposed in respect of convictions for which leave to appeal had not been granted. Leave to appeal had not been granted in respect of the convictions for robbery and aggravated indecent assault. The appellant was therefore confined to challenging the sentence imposed in respect of the conviction for rape as a stand-alone offence. No such specific challenge had been advanced in relation to the rape sentence in isolation. On that basis alone, the grounds under consideration could not succeed.

31. In any event, the argument that the sentences ought to have run concurrently was unsustainable. In *Mabvumba* v *S* HH 404/25 at p 7, the Court stated as follows:

> "It is not every case of multiple counts that calls for imposition of concurrent sentences. Concurrent or cumulative sentences are only permissible where the offences are the same or of a similar nature. It is undesirable to impose concurrent sentences in serious offences such as rape and robbery, see *S* v *Imbayarwo* HH 53/13, where the court remarked thus:

> 'Whilst I agree that there is no rule forbidding the treating of closely connected offences as one for the purposes of sentence, ideally this is not advisable or desirable in respect of serious offences such as rape and robbery. Both offences usually attract lengthy prison sentences and as such the proper approach is to impose separate sentences for each count. In the instant case both the state outline and the complainant's own evidence on oath do not specifically reveal that any violence or threats of evidence preceding the taking of the cellphone. The evidence clearly shows that after the rape the accused stole cellphone. …. With due respect to the learned Magistrate, the approach he adopted in sentencing is usually correct where the offences are not serious.'"

32. The above authority demonstrates that, given the gravity of offences such as rape and robbery, it is ordinarily undesirable for a court to order that the sentences run concurrently. The rationale lies in the distinct and serious nature of each offence, which ordinarily attract substantial custodial sentences. In the present case, the appellant was convicted of robbery, rape and aggravated indecent assault, with the letter two constituting a serious violation of the complainant's rights and bodily integrity. In such circumstances, the imposition of separate sentences for each offence could not be faulted. The circumstances of the case did not warrant the treatment of the offences as a single transaction for purposes of sentence.

33. Furthermore, the applicable statutory framework reinforced the discretionary nature of the sentencing approach adopted by the court *a quo.* Section 343 of the Criminal Procedure and Evidence Act provides:

> "**343 Cumulative or concurrent sentences.**
> When a person is convicted at one trial of two or more different offences or when a person under sentence or undergoing punishment for one offence is convicted of another offence, the court may sentence him to such several punishments for such offences or for such last offence, as the case may be, as the court is competent to impose."

34. The above provision vested the sentencing court with a discretion either to order sentences to run concurrently or cumulatively, depending on the circumstances of the case. The court

a quo therefore acted within the scope of its statutory discretion in imposing separate sentences for each count. As was observed in *Mabvumba* v *S* (*supra*), concurrent sentences were not automatically warranted merely because multiple offences were committed within the same general sequence of events. Having regard to the seriousness and distinct nature of the offences in question, there was no misdirection in the sentencing approach adopted by the court *a quo*. Consequently, the seventh and eighth grounds of appeal were devoid of merit.

DISPOSITION

35. This Court is satisfied that the court *a quo* correctly applied the legal principles governing the proof of rape and properly evaluated the medical evidence within the broader context of the case. The alleged contradictions between the complainant's testimony and the medical report were immaterial to the essential elements of the offence, and the appellant's failure to challenge the medical evidence at trial precluded him from raising such challenges on appeal. The conviction for rape was amply supported by the complainant's credible testimony, the surrounding circumstances including the screams heard by other witnesses, and the appellant's established participation in the overall criminal enterprise through the doctrine of common purpose.

36. Regarding sentence, we found no basis to interfere with the exercise of discretion by the courts below. The sentence of 15 years imprisonment for rape, with the suspension of five years from the aggregate sentence, was neither excessively harsh nor in violation of any legal principle. The appellant's contention that the sentences ought to have been ordered to run concurrently could not be sustained, as such relief was not competent given that leave to appeal had been granted only in respect of the rape conviction, and in any event, the offences of robbery, rape and aggravated indecent assault were serious and distinct

offences warranting cumulative sentences. The rape was perpetrated in a very violent and cruel manner during the course of a gang armed robbery. Such brutal and heinous sexual assault on a juvenile, cries out loud for severe punishment to be meted out so as to balance the offence to the offender and ensure that society reposes confidence in the administration of the criminal justice system as a whole. The sentencing discretion was judiciously exercised. The conviction is well anchored on evidence adduced and the sentence imposed evinces a proper exercise of sentencing discretion. There is therefore no basis to interfere with the judgment of the trial court which was properly confirmed by the court *a quo.*

37. It is for the forgoing reasons that this Court issued the following order:

"The appeals against both conviction and sentence are hereby dismissed."

GUVAVA JA : I agree

MATHONSI JA : I agree

National Prosecuting Authority, respondent's legal practitioners.